



THE POLICE COMMISSIONER
CITY OF NEW YORK

**MEMORANDUM IN SUPPORT OF NYPD'S DEVIATION FROM
THE DISCIPLINARY SYSTEM PENALTY GUIDELINES**

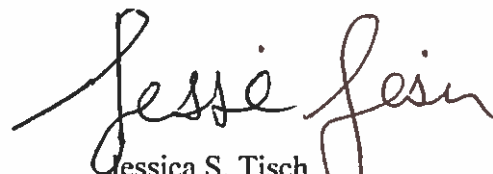
Re: Disciplinary Case No. 2024-30472 / PODS Case No. C-031107 regarding
Lieutenant Mervin Bennett

Date: December 22, 2025

This disciplinary matter was investigated by the Civilian Complaint Review Board ("CCRB") which involved an allegation that Lieutenant Bennett issued an unlawful summons. CCRB has determined that a downward deviation from the Disciplinary System Penalty Guidelines is warranted.

I concur with the downward deviation for the reasons articulated by CCRB in the attached correspondence.

Therefore, the Charges and Specifications in this matter will be dismissed and Lieutenant Bennett will receive Training, as negotiated by CCRB.


Jessica S. Tisch
Police Commissioner



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
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MOHAMMAD KHALID
INTERIM CHAIR

May 30, 2025

The Honorable Jessica Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, New York 10038

Re: CCRB v. LT Mervin Bennett, Tax No. 920019
CCRB Disciplinary Case No.: 202208743 (DADS No. 2024-30472/C-031107)

Commissioner Tisch:

A negotiated settlement of a dismissal of the charge along with Training was agreed upon and signed by all parties on May 20, 2025. Assistant Deputy Commissioner Anne Stone endorsed the negotiated settlement on May 20, 2025.

On December 20, 2022, [REDACTED] was the subject of a vehicle stop. Shortly after, Mr. [REDACTED] called 911 to make a complaint regarding the stop and the alleged damage to Mr. [REDACTED]'s car that resulted from the stop. Mr. [REDACTED] spoke to Lt. Carlo Chu and was directed to go to the 28th Precinct Stationhouse and wait for him there to discuss the complaint. While waiting for Lt. Chu inside the stationhouse at the stationhouse, a verbal altercation began between Mr. [REDACTED] and Lt. Bennett, who was stationed at the desk at the time. Mr. [REDACTED] became upset and started yelling profanities and racial slurs toward Lt. Bennett. As a result, officers ordered Mr. [REDACTED] to exit the precinct. Mr. [REDACTED] verbally refused to leave the stationhouse after officers ordered him to leave. At this point, PO Peerzada stated that Lt. Bennett specifically directed him to arrest Mr. [REDACTED] for disorderly conduct. Mr. [REDACTED] ran out of the stationhouse, but was ultimately seized, arrested, placed in a holding cell, and then eventually released with a summons for disorderly conduct.

For the charge of issuance of an unlawful summons (enforcement action involving abuse of discretion/authority), the mitigated penalty is the forfeiture of ten (10) vacation days, the presumptive penalty is the forfeiture of twenty (20) vacation days, and the aggravated penalty is termination.

We recommend departmental training for the charge of issuance of unlawful summons. The negotiated settlement deviates from NYPD disciplinary guidelines as to the charge of issuance of unlawful summons. We believe that this downward departure is appropriate given Lieutenant Bennett's almost twenty-eight years of service, the fact that he has received eleven

(11) excellent police duty recommendations and his minimal involvement with this incident in which he was subjected to profanities and racial slurs. Given these factors the CCRB deems it appropriate to deviate from the Matrix and recommends the dismissal of the charge along with imposition of the penalty of Training.

Respectfully submitted,

Mallika Kaushal

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Prosecutor | Administrative Prosecution Unit
NYC Civilian Complaint Review Board